

# SENATE . . . . . No. 1196

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## The Commonwealth of Massachusetts

PRESENTED BY:

*Mark C. Montigny*

*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to prevent child labor exploitation and trafficking.

PETITION OF:

NAME:

DISTRICT/ADDRESS:

*Mark C. Montigny*

*Second Bristol and Plymouth*

*Christopher Hendricks*

*11th Bristol*

# SENATE . . . . . No. 1196

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By Mr. Montigny, a petition (accompanied by bill, Senate, No. 1196) of Mark C. Montigny and Christopher Hendricks for legislation to prevent child labor exploitation and trafficking by increasing fines and penalties. The Judiciary.

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## The Commonwealth of Massachusetts

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In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act to prevent child labor exploitation and trafficking.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           SECTION 1. Section 1 of chapter 149 of the General Laws, as appearing in the 2022  
2   Official Edition, is hereby amended by inserting after the words “tenement house workrooms,”  
3   the following words:- seafood packing or processing facilities,

4           SECTION 2. Section 56 of said chapter 149 is hereby amended by inserting after the  
5   words “any hospital in a nonprofessional capacity,” the following words:- any seafood packing  
6   or processing facility,

7           SECTION 3. Said section 56 is hereby amended by striking the following words:- but,  
8   except in the work of fish processing when necessary in the judgment of the attorney general,  
9   and then only during the months of June, July, August, September and October, shall not exceed  
10   fifty-two

SECTION 4. Section 60 of said chapter 149 is hereby amended by inserting after the words "or mechanical establishment," the following words:- , or in any seafood packing or processing facility.

SECTION 5. Section 62 of said chapter 149 is hereby amended by inserting after the words "(16) in any job or occupation requiring the possession or use of a firearm," the following words:- (17) or in any seafood packing or processing facility.

SECTION 6. Section 78 of said chapter 149 is hereby amended by striking the figure "\$500" and inserting in place thereof the following figure:- \$20,000

SECTION 7. Said section 78 of chapter 149 is hereby amended by striking the figure "\$5,000" and inserting in place thereof the following figure:- \$100,000

SECTION 8. Said section 78 of chapter 149 is hereby amended by inserting at the end thereof the following sentence:- The penalty provided for in this section shall be in addition to and may be imposed concurrently with any other remedy or penalty provided for in this chapter.

SECTION 9. Section 78A of said chapter 149 is hereby amended in subsection (a) by striking the figures "\$250," "\$500," and "\$2,500," respectively, and inserting in place thereof the following figures:- "\$20,000," "\$50,000," and "\$100,000,".

SECTION 10. Said section 78A of chapter 149 is hereby amended by inserting at the end thereof the following subsection:- (e) The penalty provided for in this section shall be in addition to and may be imposed concurrently with any other remedy or penalty provided for in this chapter.

31           SECTION 11. Section 79 of said chapter 149 is hereby amended by striking the words  
32   “twenty-five nor more than two hundred dollars or by imprisonment for not more than two  
33   months, or both” and inserting in place thereof the following words:- \$20,000 nor more than  
34   \$100,000 or by imprisonment for not more than 6 months, or both